

STATE OF NEW YORK

3210--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 23, 2025

Introduced by M. of A. LUNSFORD -- read once and referred to the Committee on Transportation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law, in relation to authorizing the creation of a brain tumor awareness license plate; and to amend the state finance law, in relation to creating the brain tumor research and support fund

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The vehicle and traffic law is amended by adding a new
2 section 404-ff to read as follows:

3 § 404-ff. Distinctive brain tumor awareness license plates. 1. Any
4 person residing in this state shall, upon request, be issued a distinc-
5 tive license plate in support of brain tumor awareness and research
6 bearing the phrase "Brain Tumor Awareness". Applications for said
7 license plate shall be filed with the commissioner in such form and
8 detail as the commissioner shall prescribe.

9 2. A distinctive plate issued pursuant to this section shall be issued
10 in the same manner as other number plates upon payment of the regular
11 registration fee prescribed by section four hundred one of this article;
12 provided, however, that an additional service charge of twenty-five
13 dollars shall be charged for such plates.

14 3. Each twenty-five dollars received as the annual service charge
15 under this section shall be deposited to the credit of the "brain tumor
16 research and support fund" established pursuant to section ninety-nine-
17 ss of the state finance law and shall be used to fund research and
18 support programs undertaken pursuant to section ninety-nine-ss of the
19 state finance law.

20 § 2. The state finance law is amended by adding a new section 99-ss to
21 read as follows:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 § 99-ss. Brain tumor research and support fund. 1. There is hereby
2 established in the joint custody of the commissioner of taxation and
3 finance and the comptroller a fund to be known as the "brain tumor
4 research and support fund".

5 2. Such fund shall consist of all revenues received pursuant to
6 section four hundred four-ff of the vehicle and traffic law, and all
7 other moneys appropriated, credited or transferred thereto from any
8 other fund or source pursuant to law. Nothing contained in this section
9 shall prevent the state from receiving grants, gifts or bequests for the
10 purposes of the fund as defined in this section and depositing them into
11 the fund according to law.

12 3. On or before the first day of February each year, the comptroller
13 shall certify to the governor, temporary president of the senate, speak-
14 er of the assembly, chair of the senate finance committee and chair of
15 the assembly ways and means committee, the amount of money deposited in
16 the brain tumor research and support fund during the preceding calendar
17 year as the result of revenue derived pursuant to section four hundred
18 four-ff of the vehicle and traffic law and from grants, gifts and
19 bequests.

20 4. On or before the first day of February each year, the commissioner
21 of health shall provide a written report to the temporary president of
22 the senate, speaker of the assembly, chair of the senate finance commit-
23 tee, chair of the assembly ways and means committee, chair of the senate
24 committee on health, chair of the assembly health committee, the state
25 comptroller and the public. Such report shall include how the monies of
26 the fund were utilized during the preceding calendar year, and shall
27 include:

28 (i) the amount of money disbursed from the fund and the award process
29 used for such disbursements;

30 (ii) recipients of awards from the fund;

31 (iii) the amount awarded to each recipient;

32 (iv) the purposes for which such awards were granted; and

33 (v) a summary financial plan for such moneys which shall include esti-
34 mates of all receipts and all disbursements for the current and succeed-
35 ing fiscal years, along with the actual results from the prior fiscal
36 year.

37 5. Moneys of the fund may be expended to offset costs associated with
38 medicaid fee for service coverage of tumor treating fields therapy, also
39 known as TTFields therapy, which includes the coverage of a wearable
40 medical device that uses low-intensity, alternating electric fields
41 delivered directly to the tumor site to treat glioblastoma and other
42 cancers as recommended by medical and scientific evidence.

43 6. Moneys shall be payable from the fund on the audit and warrant of
44 the comptroller on vouchers approved and certified by the commissioner
45 of health.

46 7. To the extent practicable, the commissioner of health shall ensure
47 that all moneys received during a fiscal year are expended prior to the
48 end of such fiscal year.

49 § 3. 1. A distinctive plate established pursuant to section 404-ff of
50 the vehicle and traffic law shall only be designed, produced and issued
51 upon the delivery to the department of motor vehicles of a surety bond
52 in the amount of six thousand dollars, which shall be executed by a
53 surety company authorized by the department of financial services to
54 transact business in this state. Provided, however, that if the commis-
55 sioner of motor vehicles shall have received prior to plate design,
56 production and issuance at least two hundred orders for such distinctive

1 plate together with the additional annual service charge applicable to
2 each such order, which shall be non-refundable, no such surety bond
3 shall be required. All service charges collected pursuant to this
4 section shall be deposited pursuant to the provisions of section 404-00
5 of the vehicle and traffic law to the credit of the department of motor
6 vehicles distinctive plate development fund established by section 95-g
7 of the state finance law and shall be used for the design, production,
8 advertising and distribution of distinctive license plates in accordance
9 with such section 95-g.

10 2. If, upon the expiration of two years following the date upon which
11 distinctive plates in the series are first available for sale two
12 hundred or more sets of such plates are sold, a bond delivered pursuant
13 to this section shall be discontinued. If fewer than two hundred sets of
14 such plates are sold by such time, the department of motor vehicles
15 shall be entitled to recover against the bond in an amount proportionate
16 to such shortfall.

17 § 4. This act shall take effect immediately; provided, however, that
18 section one of this act shall take effect on the one hundred eightieth
19 day after it shall have become a law. Effective immediately, the addi-
20 tion, amendment and/or repeal of any rule or regulation necessary for
21 the implementation of this act on its effective date are authorized to
22 be made and completed on or before such effective date.